

HOUSE No. 4164

The Commonwealth of Massachusetts

PRESENTED BY:

Rob Consalvo

To the Honorable Senate and House of Representatives of the Commonwealth of Massachusetts in General Court assembled:

The undersigned legislators and/or citizens respectfully petition for the adoption of the accompanying bill:

An Act relative to Anti-SLAPP law reforms.

PETITION OF:

NAME:	DISTRICT/ADDRESS:	DATE ADDED:
<i>Rob Consalvo</i>	<i>14th Suffolk</i>	<i>1/15/2025</i>

HOUSE No. 4164

By Representative Consalvo of Boston, a petition (accompanied by bill, House, No. 4164) of Rob Consalvo relative to lien exposure. The Judiciary.

The Commonwealth of Massachusetts

In the One Hundred and Ninety-Fourth General Court
(2025-2026)

An Act relative to Anti-SLAPP law reforms.

Be it enacted by the Senate and House of Representatives in General Court assembled, and by the authority of the same, as follows:

1 SECTION 1. The fifth paragraph of section 59H of chapter 231 of the General Laws, as
2 appearing in the 2022 Official Edition, is hereby amended by inserting after the first sentence the
3 following sentence:- If the plaintiff and the defendant are both natural persons, any costs or fees
4 awarded by the court pursuant to this paragraph shall not result in a lien against the nonmoving
5 party's primary residence or primary business, if the business has 500 or fewer employees.

6 SECTION 2. Said section 59H of said chapter 231, as so appearing, is hereby further
7 amended by inserting after the fifth paragraph the following paragraph:-

8 If a party brings a special motion to dismiss under this section, the court may order the
9 parties to participate in mediation to resolve the dispute, during which no attorneys fees or costs
10 shall accrue. Mediation shall be conducted as expeditiously as possible. If the parties do not
11 resolve the dispute during mediation, the court shall decide whether to grant the special motion.